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KENYA

Human Rights Developments

Kenya remained in a state of worsening political and economic crisis as the government continued to stall on promises of reform that would have brought greater democratization. While some cosmetic changes were made by the government of President Daniel arap Moi, little or no genuine progress was achieved in diminishing the absolute power enjoyed by the executive branch. For the fourth year in a row, the standard of living for the average Kenyan dropped. In the political arena, the government adeptly derailed the grassroots constitutional reform lobby that threatened its monopoly by dividing the reform constituency and reducing its momentum. The government selected ruling party and opposition politicians to serve on an Inter-Parties Parliamentary Group (IPPG) with responsibility for constitutional change, while excluding the broad-based National Convention Executive Council (NCEC), a pro-democracy coalition of opposition parties, human rights, religious, and nongovernmental groups, from participation in the reform process. President Moi continued to push for a less consultative constitutional review process through the Parliament, which he led through his party's majority there. Throughout 1999, the reform crisis remained unresolved and the year was characterized by distrust, infighting, and a lack of consensus on the constitutional reform process.

As the international donor community's attention on human rights diminished and was replaced by an almost exclusive concern with corruption, the government continued to make efforts to give the appearance of economic reform. Among other things, President Moi created a Law Reform Coordinating Committee, cut government ministries from twenty-seven to fifteen, and appointed a new head of the Civil Service. None of the grand gestures made by the President Moi in 1999 addressed civil and political rights abuses.

The link between corruption and eroded respect for human rights was most evident in the judiciary, the provincial administrations, and the police. The government had always used the judiciary for political ends. In September, the sudden death of Chief Justice Zachaeus Chesoni, resulted in the appointment of the public prosecutor, Bernard Chunga, as chief justice. The appointment of Chunga, known for his zealous prosecution of government critics, caused an uproar in the legal community and appeared to signal a serious step backwards for judicial independence.

Complaints of police harassment, use of excessive force, torture, and deaths in custody continued. Police violently dispersed political rallies, sometimes seriously injuring people. In June, a peaceful opposition rally was broken up with tear gas and live bullets by police resulted in dozens of injuries, including a broken arm and hip injuries to two opposition Members of Parliament. In August, police stormed a mosque in Mombasa in search of an arsonist, resulting in five deaths and injuries to fifteen who were attending a wedding. Refugees and migrants were also regular targets of police harassment, relocation to rural camps, arbitrary detention, and deportations.

Even more disturbing was the growing reliance on state-sponsored gangs to break up meetings and rallies of government critics. Although both ruling party and opposition parties created their own civilian security groups, one of the most notorious was Jeshi la Mzee, an offshoot of the ruling party youth wing allegedly organized by ruling party Assistant Minister Fred Gumo. Jeshi la Mzee became renowned for disrupting pro-democracy and opposition meetings and terrorizing peaceful protesters. In June, a peaceful rally was broken up by an armed gang that seriously injured peaceful

demonstrators. Press photos of one of the attackers beating up Rev. Timothy Njoya (resulting in the dislocation of his arm), was later identified as being the same person who had earlier in the year abducted and roughed up David Makali, editor of the independent Expression Today, the day after his magazine published a story linking Mr. Gumo to a drug cartel.

Although a wide array of independent and outspoken newspapers were able to publish relatively freely, the independent media was not exempt from retaliation. In August, Tony Gachoka, editor of the Post on Sunday, was jailed for six months on contempt of court charges for articles that alleged that the chief justice had accepted a bribe in the Goldenberg case, the country's largest corruption scandal implicating high-ranking government officials. Three of the seven judges that sat in Gachoka's case were mentioned in his articles. The magazine was fined one million shillings (approximately U.S.\$14,000) and banned from publishing until the fine was paid in full.

State-sponsored political violence since 1991 against members of ethnic groups perceived to support the political opposition resulted in the displacement of some 400,000 people. The authorities consistently failed to provide adequate security to those under threat or to hold those responsible for the violence accountable. In June, a presidential Commission on the Ethnic Clashes wound up after eleven months of hearing evidence, including from Human Rights Watch, about the violence between 1991 and 1998. At the outset, the commission showed promise as the lead counsel called witnesses that testified to the role of government officials in instigating and allowing the violence. However, in late 1998, President Moi installed Bernard Chunga as lead counsel, resulting in weaker witness testimony, and complaints by the Catholic Justice and Peace Commission that it was being prevented from testifying. As of October, the commission's findings had not been released.

Defending Human Rights

A wide array of local human rights organizations were engaged in monitoring human rights in Kenya. Although these organizations were able to function, they periodically came under attack from the government for their work. In 1999, Amnesty International and Human Rights Watch were able to visit Kenya unimpeded. In September, however, the U.S. League of Women Voters and local women's groups were prevented by the provincial administration from holding meetings with women in Rift Valley Province. In October, U.N. Special Rapporteur for Torture Nigel Rodley was denied entry to a maximum security prison despite government assurances of access.

The government-sponsored Human Rights Standing Committee, formed in May 1996, generally maintained a low profile and its strained relationship with the human rights NGO community continued. Since its creation, the Committee had issued six private reports for the president. It issued its first public report in December 1998, a general overview of human rights laws and definitions, with only cursory reference to human rights abuses. Its section on the 1997 political violence in Coast Province was more comprehensive. In August, the Kenyan government signed the Rome Statute for the creation of an International Criminal Court.

The Role of the International Community

In the lead-up to the 1997 election, Kenya's main donors played a positive role in pushing the government to concede to domestic calls for genuine pluralism. However, since the election, international attention to the human rights situation steadily declined. During 1999, as in the previous year, strong public statements by donors and the international financial institutions focused almost exclusively on Kenya's worsening economic situation and its dismal record on corruption. World Bank and International Monetary Fund (IMF) funding remained suspended since 1997 pending progress on corruption. In July, the IMF held discussions with the government as it had done the previous year, but did not renew funding.

The approach of the international community in prioritizing and compartmentalizing corruption and economic reform issues as distinct from political accountability and other rights issue fell short of addressing the key issue, absolute executive control, at the heart of Kenya's political crisis. Some donors and the international financial institutions did call for "good governance" and stressed its importance to economic growth. In September, the British High Commissioner stated that the economy would only recover with good governance. The European Union welcomed the trimming of

the government ministries as a necessary step towards economic recovery, and also noted that "political reforms would have to be given equal weight." However, in their use of this catch phrase they stopped short of using their leverage to more strongly call on the government to end the political crisis and to permit the constitutional and other reforms that would lead to good governance. The Dutch government was the only government that took a strong unequivocal stance, announcing in September that it would cut all aid to Kenya over three years due to "bad governance, human rights abuses, and impeded democratization."

United States

Although human rights concerns remained on the U.S. agenda, trade and economic concerns as well as international terrorism tended to take precedence over human rights. As other donors, the U.S. focused its attention on criticizing corruption. Following the bombing of the U.S. Embassy in Kenya in 1998, the U.S. also brought strong pressure to bear on the government to address the unimpeded flow of arms and suspect foreign nationals into Kenya. One negative offshoot of this valid security concern, was the growing indiscriminate police harassment of migrants and refugees in Kenya. In June, the U.S. gave U.S.\$11 million in compensation to families of the victims of the U.S. Embassy bombing amid complaints by some Kenyans that the U.S. marines had blocked rescue efforts by and of Kenyans.

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